

The Court also notes that on July 28, 2026 at the same time Plaintiff filed his untimely Opposition, he also filed a Motion to Strike Defendant Sheila Craft's Jury Demand with a hearing set for August 5, 2028, 8 days later. *Code of Civil Procedure* §1005(b) requires no less than 16 Court days' notice. So, even if the Motion were served the day it was filed, which is just an assumption given that there is no proof of service, notice is wholly insufficient. The Motion is denied.

7. 25CV03849 WILSON, MACY v. CRANDALL, JASON OWENS ET AL

EVENT: Motion for Order to Bifurcate Plaintiff's Claims Against North State Water Testing/Pump, LLC from Plaintiff's Other Claims

Defendant North State Water Testing/Pump, LLC's ("Defendant" herein) Request for Judicial Notice is granted. However, while these filings will be considered for the limited fact that each party made the representations reflected in its respective filings, the Court agrees with the Plaintiff Macy Wilson ("Plaintiff" herein) that they do not establish the truth of underlying factual assertions regarding the transaction, the alleged scope of any defendant's work, the relationship among the claims, causation, damages, or whether separate trials would promote convenience, avoid prejudice, or further expedition and economy under *Code of Civil Procedure* §§598 and 1048(b).

Plaintiff's Evidentiary Objections are overruled.

The Court finds that based upon the allegations in the First Amended Complaint, bifurcation would not aid or result in the convenience of witnesses, the ends of justice, or the economy and efficiency of handling the litigation (*Code of Civil Procedure* §598), nor the furtherance of convenience or to avoid prejudice, or expedition and economy (*Code of Civil Procedure* §1048(b)). Thus, bifurcation is not warranted here and the Motion for Order to Bifurcate Plaintiff's Claims Against North State Water Testing/Pump, LLC from Plaintiff's Other Claims is denied. Counsel for the Plaintiff shall prepare and submit a form of order consistent with this ruling within two weeks.

8. 25CV04232 CTL FORESTRY MANAGEMENT, INC v. FUGUE LAUMAN LLC ET AL

EVENT: Cross-Defendant Ceres Environmental Services, Inc. and David Anders McIntyre's Demurrer to Cross-Complainant Emshire LLC's Cross-Complaint

As to the statute of limitations, the Court finds that the running of the statute of limitations does not appear "clearly and affirmatively" on the face of the Cross-Complaint and Cross-Complainant Emshire LLC ("Emshire" herein) has sufficiently alleged facts to support at least one doctrine (delayed discovery) that would toll the statute of limitations. See Cross-Complaint at Paragraphs 3, 4, 9, 11, 50-53, 55-57. The Demurrer is overruled on that basis.

To invoke the alter ego doctrine, Emshire must allege both: (1) a "sufficient unity of interest and ownership between the corporation and the individual or organization

controlling that the separate personalities of the [two entities] no longer exist”; and (2) facts showing that “treating the acts as those of the corporation alone will sanction a fraud, promote injustice, or cause an inequitable result.” *Misik v. D’Arco* (2011) 197 Cal.App.4th 1065, 1071-72 (citation and quotations omitted). The Court finds that here, Emshire has done so. See Cross-Complaint at Paragraphs 3, 4, 11, 120, 122. The Demurrer is overruled on that basis. Based upon this ruling, the Court also finds that Causes of Action Five through Twelve have been sufficiently pled and the Demurrer to those causes of action are likewise overruled.

Finally, as to the fraud cause of action, “[t]he elements of fraud are (1) a misrepresentation of a material fact (false representation, concealment, or nondisclosure); (2) knowledge of falsity; (3) intent to defraud; (4) justifiable reliance; and (5) resulting damage.” *Collins v. eMachines* (2011) 202 Cal.App.4th 249, 259. “The facts constituting the fraud, including every element of the cause of action, must be alleged ‘factually and specifically’” to survive demurrer. *Apollo Capital Fund, LLC v. Roth Capital Partners, LLC* (2007) 158 Cal.App.4th 226, 240 [citing *Committee on Children’s Television, Inc. v. General Foods Corp.* (1983) 35 Cal.3d 197, 216-17]. Here, the Court finds that fraud has been sufficiently pled. See Cross-Complaint at ¶¶3, 4, 11, 13-15, 19-21, 31, 59-63, and the Demurrer is overruled on this basis.

Cross-Defendant Ceres Environmental Services, Inc. and David Anders McIntyre’s Demurrer to Cross-Complainant Emshire LLC’s Cross-Complaint is overruled in its entirety. Counsel for Emshire shall submit a form of order consistent with this ruling within two weeks and Ceres Environmental Services, Inc. and David Anders McIntyre shall file their Answers to the Cross-Complaint within 20 days’ notice of this order.

Additionally, the Court continues the Case Management Conference on August 26, 2026 to November 4, 2026 at 10:30 a.m. Case Management Conference Statements are to be timely filed and served.

9. 25CV05132 KATHLEEN FRANCES O’LEARY, BY AND THROUGH HER SUCCESSOR-IN-INTEREST, REBEKAH EASTER ET AL V. MURRAY, JASON ET AL

EVENT: Motion to Compel Arbitration and Request to Stay Action

Plaintiffs’ Evidentiary Objections to the Declaration of Alaina T. Dickens are overruled. However, the Court does note that the quoted portions to which Plaintiffs object are not being accepted by the Court as fact in relation to the disputed factual and legal issues of execution and contract formation. Defendants Evidentiary Objections to the Declaration of Kathryn Locatell, M.D. are overruled. The evidence submitted supports a finding that Ms. O’Leary lacked capacity to understand and appreciate the Arbitration Agreement at the time it was signed [See Declaration of Kathryn Locatell, MD at ¶¶6, 8-12, 14-28, 29-34]. Thus, the Court finds that Defendants have failed to satisfy their burden of establishing the existence of a valid Arbitration Agreement. The Court thus concludes that there is no valid and enforceable agreement to arbitrate and the Motion is denied.